



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 12, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201807080 regarding Police Officer Manuel Martinez, Tax No. [REDACTED]
(DADS No. 2019-20515)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, including Body Worn Camera Video evidence. In this matter, Police Officer Martinez was arresting an individual who was actively resisting arrest. After taking the individual to the ground, Police Officer Martinez struck the individual to gain compliance.

The CCRB investigator, while exonerating the majority of the force used by Police Officer Martinez, determined that only the strikes to the individual's head and neck area while the individual was face down on the ground were unreasonable. The CCRB investigator only found that the strikes were unreasonable due to the proximity of the individual's head to the street. However, as captured on video, the individual was not complying and his hands were not visible. Police Officer Martinez could clearly not gain control of the actively resisting individual, only being able to do so when backup officers arrived to assist.

As the video evidence demonstrates, Police Officer Martinez used only the necessary amount of force to gain control of an actively resisting individual. Therefore, the Police Commissioner has determined that no disciplinary action will be taken against Police Officer Martinez.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Cecil Wade', with a long, sweeping horizontal stroke extending to the right.

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office